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CASE #	CASE NAME	HEARING NAME
CVRI2505934	MAIORANO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL PLAINTIFF SHERYL L. MAIORANO'S DEPOSITION

Tentative Ruling:

The motion is moot (except as to the issue of sanctions) because the parties agreed to move forward with Plaintiff's deposition on September 2, 2026.

Under California Rules of Court, rule 3.1348, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348.) Plaintiff argues imposing sanctions would be unjust because the matter has been resolved. However, the evidence provided by both parties indicates that after Plaintiff failed to appear for her noticed deposition, she failed to provide any new deposition dates until this motion was filed. It should not have taken Defendant noticing this motion for Plaintiff to cooperate. Plaintiff has failed to set forth any facts that make awarding sanctions unjust and/or that she acted with substantial justification. **The court awards sanctions in favor of Defendant and against Plaintiff in a reasonable amount of \$1,060 (4 hours x \$250 + \$60).**

If a timely request for oral argument is made by no later than 4:30 p.m. on September 10, 2026, oral argument will be heard on September 11, 2026 at 10:00 a.m. (not 8:30 a.m.).